

Colony Partners, LLC (2023) 90 Cal.App.5th 1075, 1091 [affirming summary judgment where there was “no evidence in the record from which a reasonable trier of fact could find that [defendant] ... increased the risk of injury”]; *Foltz v. Johnson* (2017) 16 Cal.App.5th 647, 656, 661; *Luna v. Vela* (2008) 169 Cal.App.4th 102, 113 [“it is for the trier of fact to determine whether [defendant] breached his limited duty not to increase the risks inherent in the sport”].)

On this record, the Court finds that the primary assumption of the risk doctrine applies but there are triable issues of fact as to whether Defendants engaged in conduct that was reckless in that it was totally outside the range of the ordinary activity involved in supervising the recreational activity of swimming and thereby breached the limited duty not to increase the risks inherent in that activity. Specifically, whether the failure to provide a safety briefing, swimming assessment (or otherwise identify non-swimmers), or mandate or make available floatation devices increased the risk of injury inherent in swimming at the recreational water park.

The Defendants motion for summary judgment and in the alternative for summary adjudication is **denied**.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR ADMISSIONS, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

15. 9:01 AM CASE NUMBER: C24-02695
CASE NAME: CUSHMAN & WAKEFIELD U.S., INC. VS. BROOKS PEDDER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM XD CHATHAM TO REQUEST FOR PROD, SET 1**
FILED BY: PEDDER, BROOKS
TENTATIVE RULING

Parties submitted a Joint Stipulation to continue hearing to: April 13, 2026.

16. 9:01 AM CASE NUMBER: C24-02695